

EMPLOYMENT TRIBUNAL BUNDLE EXTRACT

Raghunathan v Meridian Structures Limited — case number 1806422/2024 — Leeds

PROTECTED DISCLOSURE AND DISMISSAL DOCUMENTS

Claimant	Ms Priya RAGHUNATHAN, Senior Quantity Surveyor
Continuous service	Commenced 9 January 2022. Effective date of termination 8 December 2023. 1 year, 10 months and 29 days.
Claims	(1) automatically unfair dismissal, s.103A ERA 1996; (2) detriment, s.47B ERA 1996; (3) unlawful deduction from wages; (4) breach of contract (notice).
Note on jurisdiction	The claimant does not have two years' continuous service. An ordinary unfair dismissal claim under s.98 is therefore not available to her and is not pleaded. Everything turns on the reason for dismissal.
Documents in this extract	18.1 the disclosure; 18.2 the board minute; 18.3 the dismissal letter; 18.4 the draft settlement agreement; 18.5 the recruitment advertisement; 18.6 agreed and disputed facts

18.1 — THE DISCLOSURE

Reproduced at D10 item 10.7. Sent 16 November 2023 at 09:12 to Mr Ferris and Ms Kettleborough. The claimant also telephoned HM Inspector Ormerod-Suss on 17 November 2023 at 08:41 (see D01 para. 20).

The claimant's case on the disclosure

- It was a disclosure of information, not a bare allegation: it identified the document, the date it appeared on the shared drive, the date on its face, the absence of a register entry and the absence of a Halbrook job number.
- She reasonably believed it tended to show a criminal offence (s.43B(1)(a)), a failure to comply with a legal obligation (s.43B(1)(b)), and that the health or safety of an individual had been and was likely to be endangered (s.43B(1)(d)).
- She reasonably believed it was in the public interest (s.43B(1)); a man had died and a public regulator was investigating.
- The disclosure to HSE on 17 November 2023 was a qualifying disclosure to a prescribed person under s.43F.
- She does not have to prove the underlying facts are true, only reasonable belief: Babula v Waltham Forest College.

The respondent's case on the disclosure

Meridian admits that the email of 16 November 2023 was made but denies it was a protected disclosure, contending that it was 'an expression of commercial disagreement about whether an application for payment should be signed' and that the claimant's true motivation was a dispute about her bonus. Meridian relies on a grievance the claimant raised on 4 October 2023 about her bonus award. The claimant accepts she raised that grievance. Motive is, on the authorities, largely irrelevant to whether a disclosure is protected, though it may bear on reasonableness of belief.

18.2 — THE BOARD MINUTE

Document	Minutes of a meeting of the board of directors of Meridian Structures Limited
Date on face	2 November 2023
Present on face	Mr A. Ferris (chair); Ms V. Trelawney-Osgood; Mr H. Kaczmarek-Bell; Mr S. Nightingale-Obi (by telephone)
Relevant resolution	'RESOLVED that the commercial function be restructured and that one senior quantity surveyor post be made redundant, the selection to be confirmed by the Construction Director.'

The problem with the minute

- Item 4 of the same minute reads: 'The board noted the Brackenmoor incident review and the likely impact on the Q4 position.' The Brackenmoor incident occurred on 14 November 2023, twelve days after the date on the minute.
- The minute was produced by Meridian on 3 May 2024 in response to an order for specific disclosure. It was not included in the initial disclosure list, which was certified by Meridian's solicitors on 12 February 2024.
- The metadata of the electronic copy shows the file created 29 April 2024 at 16:22. Meridian says the electronic copy is a re-typing of a manuscript original. The manuscript original has not been produced.

- Mr Nightingale-Obi, recorded as attending by telephone, resigned as a director on 27 October 2023, six days before the date of the minute. His resignation was filed at Companies House on 30 October 2023 (form TM01).
- Meridian's position, in a witness statement of Ms Trelawney-Osgood dated 20 June 2025, is that 'the minute was prepared later from notes, that the reference to the Brackenmoor incident review was inserted in error when the minutes were typed up, and that Mr Nightingale-Obi's name was carried over from a template'.
- The claimant applies to strike out the response under rule 38 of the Employment Tribunals Rules of Procedure 2024 on the ground that the respondent has conducted the proceedings unreasonably, alternatively for an adverse inference, alternatively for a costs order.

18.3 — THE DISMISSAL LETTER (extract)

Meridian Structures Limited, Thorpe Park, Leeds LS15 8ZB
Ms P. Raghunathan8 December 2023

“Following the restructuring of the commercial function agreed by the board, I write to confirm that your position as Senior Quantity Surveyor is redundant. Your employment terminates with immediate effect. You will be paid in lieu of notice.

There is no right of appeal as you have less than two years’ service.

You are reminded of your continuing obligations of confidentiality. In particular you must not disclose any information concerning the company’s affairs, including the Brackenmoor Wharf project, to any third party including any regulatory body, without the company’s prior written consent. Yours sincerely, B. Hargreave-Siddiqui, Head of HR”

Note. No consultation took place. No pool was identified. No selection criteria were applied. Meridian accepts all of this and says it is irrelevant because the claimant lacks qualifying service for an ordinary unfair dismissal claim.

18.4 — DRAFT SETTLEMENT AGREEMENT (clause 9, as first sent on 11 December 2023)

“9.1 The Employee warrants that she has not made and undertakes that she will not make any disclosure, report, complaint or communication of any kind to the Health and Safety Executive, the police, any coroner, any insurer, or any other regulatory or investigatory body, concerning the Company, the Brackenmoor Wharf project or any incident occurring there.

9.2 In the event of breach of clause 9.1 the Employee shall immediately repay the whole of the Settlement Sum and shall indemnify the Company against all losses arising.

9.3 The Employee acknowledges that damages would not be an adequate remedy for breach of clause 9.1 and that the Company shall be entitled to injunctive relief.”

Note. Clause 9 was withdrawn on 20 December 2023 after the claimant's solicitor objected. The claimant relies on the fact that it was proposed at all. Section 43J ERA 1996 renders void any provision in an agreement purporting to preclude a worker from making a protected disclosure. The claimant contends that proposing the clause was itself a detriment under s.47B and invites the tribunal to consider whether it was an attempt to pervert the course of justice. Meridian says it was 'a standard clause included in error by a junior member of the HR team' and that its prompt withdrawal answers the point. The claimant notes that the draft was sent under cover of a letter signed by Ms Hargreave-Siddiqui, Head of HR, and copied to Mr Ferris.

18.5 — RECRUITMENT ADVERTISEMENT

Posted 4 January 2024 on two job boards by Meridian Structures Limited: 'Senior Quantity Surveyor, Leeds, £62,000 - £70,000 + car allowance. Leading regional contractor seeks an experienced senior QS to join our expanding commercial team.' Meridian says this was 'a different role, at a different grade, on a different project'. The advertisement does not identify a project. The claimant's salary at termination was £64,500.

18.6 — AGREED AND DISPUTED FACTS (from the list of issues, 12 May 2025)

	Agreed	Disputed
The email of 16.11.2023 was sent and received	Yes	—
The claimant telephoned HSE on 17.11.2023	Yes	Whether Meridian knew of the call
The claimant was dismissed on 8.12.2023	Yes	—
No consultation or selection process took place	Yes	—

	Agreed	Disputed
The board minute bears the date 2.11.2023	Yes	Whether it records a meeting that took place on that date
Covert monitoring was installed on 1.12.2023	Yes	Its purpose, and admissibility of its product
A senior QS role was advertised on 4.1.2024	Yes	Whether it was the claimant's role
Clause 9 was proposed and withdrawn	Yes	Whether it was a detriment and who authorised it
The reason or principal reason for dismissal	—	The central issue